

Suresh Chand Bansal v. Electricity Ombudsman & Others

Allahabad High Court · Single Judge · 22 August 2014 · 2014 SCC OnLine All 13588 · Misc. Single No. 4512 of 2014 · **Writ petition dismissed; the Ombudsman's order holding the CGRF without jurisdiction over accident-related property loss upheld**

HEADNOTE

The Consumer Grievance Redressal Forum has no jurisdiction to award compensation for loss to property caused by an accident in transmission lines, and a person is not a 'consumer' qua transmission lines. Overhead 11,000-volt transmission lines passing over the petitioner's house fell in the rains, sending current through his connection and destroying appliances/causing a fire. His CGRF compensation award (Rs. 89,572) was set aside by the Electricity Ombudsman. Held: transmission lines are, by definition (Section 2(72) of the Electricity Act, 2003), not an essential part of a licensee's distribution system, so the petitioner is not a 'consumer' (Section 2(15)) in respect of them; the CGRF's jurisdiction under Section 42 r/w Section 181 and the UPERC (CGRF & Electricity Ombudsman) Regulation 2007 (cl. 2.1(e) / cl. 5) covers defects/deficiency in supply, billing and tariff, not loss to public property from a transmission-line accident (which engages the Section 161 accident-inquiry mechanism, itself confined to human/animal life). The Ombudsman committed no illegality; the writ was dismissed.

HOLDING-UNITS

INTERPLAY · EA2003::42

CGRF has no jurisdiction over compensation for property loss from a transmission-line accident; claimant not a 'consumer' qua transmission lines

QUESTION

Can the CGRF award compensation for loss to property caused by an accident in transmission lines, and is the affected person a 'consumer' in that respect?

HOLDING

No. Transmission lines are, by Section 2(72), not an essential part of a licensee's distribution system, so the affected person is not a 'consumer' (Section 2(15)) qua those lines - the presence of a transformer tapped off the line does not alter this. The CGRF's jurisdiction under Section 42 r/w Section 181 and the 2007 Regulation (cl. 2.1(e)/cl. 5) is confined to defects/deficiency in supply, billing and tariff, and does not extend to loss of public property from a transmission-line accident; the Section 161 accident-inquiry mechanism concerns loss to human/animal life, not property. The Ombudsman rightly held the CGRF without jurisdiction and set aside its compensation award. ¶ 6-11

LIMITING FACTS

11,000-volt overhead transmission lines over the petitioner's house fell in the rains, destroying appliances and causing a fire; CGRF had awarded Rs. 89,572 compensation.

PRINCIPLE TAGS

cgrf-no-jurisdiction-over-transmission-line-accident-property-loss The CGRF cannot award compensation for property loss from a transmission-line accident; its jurisdiction covers supply/billing/tariff grievances, not accident-related property damage. ¶ 8-10

not-a-consumer-qua-transmission-lines-s2(72) Transmission lines are not part of a licensee's distribution system (s.2(72)), so a person affected by a transmission-line accident is not a 'consumer' (s.2(15)) for that purpose. ¶ 8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ANY OTHER REMEDY THE PETITIONER MAY HAVE FOR THE PROPERTY LOSS

The Court decided only the CGRF's lack of jurisdiction; it did not address alternative remedies for the accident loss. ¶ 10-12

